

WEBSITE SERVICE AND MAINTENANCE FEE AGREEMENT

Effective Date: _____

This Website Service and Maintenance Fee Agreement ("Agreement") is made by and between the following parties. The Developer and the Client may each be referred to as a "Party" and together as the "Parties."

Developer / Service Provider	Prerak Ketankumar Patel
Address	1065 Solamere Dr. Apt. 207, Titusville, FL 32780
Phone	(321) 610-0582
Email	patel.prerak2798@gmail.com
Client / Customer	
Address	
Phone	
Email	

1. Maintenance Services

After the web application or website goes live, Developer will provide limited monthly service and maintenance for the live site (the "Website"). The purpose of this maintenance is to help keep the Website reasonably operational and to monitor its basic health. Maintenance services are limited to the items expressly stated in this Agreement.

- Monthly health check of the Website and server status, including basic review of uptime, loading, critical errors, and obvious broken functionality.
- Basic monitoring and maintenance of the Website environment, server configuration, application status, and core dependencies, to the extent Developer has access and control.
- Reasonable troubleshooting for ordinary operational issues affecting the Website, such as downtime, server errors, or basic application failures.
- Basic coordination with hosting, domain, payment processor, email, API, or other third-party vendors when needed, provided Client maintains active accounts and gives Developer the required access.

2. Monthly Maintenance Fee and Usage-Based Charges

Client agrees to pay a minimum monthly maintenance fee of \$120.00 USD per month. This amount is the base fee only. If the Website requires additional server resources, higher traffic usage, third-party costs, emergency work, advanced troubleshooting, extended support, new features, major fixes, migrations, security incidents, data recovery attempts, or work beyond ordinary monthly maintenance, additional usage-based or service-based charges may apply.

Developer may provide an estimate or invoice for additional work when practical. Emergency, urgent, or necessary work may be billed based on time, complexity, third-party charges, and resources used.

3. Payment Method, Start Date, and Recurring Charges

The maintenance fee becomes due as soon as the Website is live or made available for public use, whichever occurs first. Client shall pay the monthly maintenance fee by Zelle. The fee is due monthly and continues repeatedly each month for as long as the Website remains live, hosted, maintained, or dependent on Developer-managed services or access.

Unless the Parties agree otherwise in writing, each monthly payment is due on the same calendar day of each month as the Website Launch Date. Payments are non-refundable once made, except to the extent required by non-waivable law.

4. Client Responsibilities

Client is responsible for keeping all required accounts, subscriptions, hosting plans, domains, payment processors, APIs, email services, licenses, and third-party services active and paid. Client must promptly provide credentials, verification codes, approvals, content, billing information, and access needed for Developer to perform maintenance.

Developer is not responsible for delay, downtime, service interruption, or nonperformance caused by Client's failure to provide access, payment, approvals, accurate instructions, or active third-party accounts.

5. Limits of Maintenance; Excluded Services

This Agreement is for basic operational maintenance only. Unless separately agreed in writing and paid for, the monthly fee does not include new features, redesigns, new pages, new integrations, content writing, SEO, advertising, legal compliance work, accessibility remediation, full cybersecurity services, managed hosting, backup guarantees, disaster recovery guarantees, database reconstruction, payment dispute handling, customer support for Client's customers, or business consulting.

Developer is only responsible for using reasonable efforts to help keep the Website running within the access and control available to Developer. Developer does not guarantee uninterrupted uptime, error-free operation, sales, revenue, search ranking, customer bookings, payment approvals, or business results.

6. Third-Party Services and Vendor Issues

The Website may depend on third-party services such as hosting companies, domain registrars, payment processors, email providers, APIs, plugins, software libraries, analytics tools, or other platforms. Developer does not own or control those third-party services and is not responsible for their downtime, errors, price changes, policy changes, account suspensions, data loss, security incidents, billing issues, outages, or decisions.

7. Data Loss, Backups, Recovery, and Security

Unless Client purchases a separate written backup, recovery, or cybersecurity service, Developer does not guarantee backups, data recovery, security monitoring, incident response, malware removal, forensic investigation, or restoration of lost data. Client is responsible for maintaining appropriate backups, account security, credential protection, staff access controls, and business continuity procedures.

Developer is not liable for data loss, data corruption, deleted content, lost bookings, lost customer records, hacking, malware, ransomware, unauthorized access, credential theft, hosting failure, database failure, plugin conflicts, API failure, payment processor failure, or any loss caused by Client, Client's staff, Client's vendors, customers, third parties, or systems outside Developer's reasonable control.

8. Business Loss and Financial Risk Disclaimer

Developer is not responsible for Client's business losses, lost revenue, lost profits, lost customers, missed bookings, chargebacks, refunds, payment disputes, payment processor issues, reputation harm, lost leads, business interruption, or other financial losses connected to the Website, downtime, third-party services, data issues, or Client's business operations.

9. Late Payment, Suspension, and Termination

A payment is late if not received within 5 calendar days after the monthly due date. If payment is late, reversed, charged back, or unpaid, Developer may suspend maintenance, stop support, pause monitoring, disable Developer-managed services, withhold work, or suspend the Website to the extent legally and technically permitted until all amounts due are paid in cleared funds.

Either Party may terminate monthly maintenance by giving 30 days' written notice. Client remains responsible for all amounts due through the termination effective date and for any unpaid usage-based or additional service charges. If Client terminates maintenance while the Website remains live, Client accepts full responsibility for operating, maintaining, securing, backing up, and troubleshooting the Website thereafter.

10. No Warranty and Limitation of Liability

To the maximum extent permitted by law, maintenance services are provided on an "as is" and "as available" basis. Developer makes no warranty that the Website will be uninterrupted, secure, error-free, fully recoverable, compatible with all future services, or free from third-party issues.

To the maximum extent permitted by law, Developer's total liability arising out of or related to this Agreement will not exceed the amount Client actually paid to Developer for maintenance services during the one (1) month immediately before the event giving rise to the claim. Developer will not be liable for indirect, incidental, special, consequential, punitive, or business-loss damages.

11. Independent Contractor and No Partnership

Developer is an independent contractor and is not Client's employee, partner, agent, fiduciary, attorney, accountant, cybersecurity provider, managed hosting provider, or insurer. Nothing in this Agreement creates a partnership, joint venture, employment relationship, or duty beyond the express terms of this Agreement.

12. Governing Law, Venue, and Entire Agreement

This Agreement is governed by the laws of the State of Florida, without regard to conflict-of-law rules. Venue for any dispute shall be in _____, Florida, unless applicable law requires otherwise. This Agreement is the entire agreement between the Parties regarding monthly service and maintenance and may be amended only in a writing signed by both Parties.

13. Signature Block

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DEVELOPER / SERVICE PROVIDER	CLIENT / CUSTOMER
Name: Prerak Ketankumar Patel	Name: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

FLORIDA NOTARY ACKNOWLEDGMENT

State of Florida

County of _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this ____ day of _____, 20____, by _____ and Prerak Ketankumar Patel, who are personally known to me or who have produced _____ as identification.

Notary Public Signature: _____

Print Name: _____

Commission No.: _____

My Commission Expires: _____

Notary Seal: _____

Maintenance Fee Summary

Minimum Monthly Maintenance Fee	\$120.00 per month
Payment Method	Zelle
Start Date	Due when the Website is live or made available for public use
Additional Charges	Usage-based or service-based charges may apply for work beyond basic monthly maintenance